

Short title and
construction.

7. This Act may be cited as the Education (Scotland) Act, 1901, and this Act and the Education (Scotland) Acts, 1872 to 1883, shall be construed as one Act.

SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
35 & 36 Vict. c. 62. -	Education (Scotland) Act, 1872.	Section sixty-nine. Section seventy-three.
41 & 42 Vict. c. 78. -	Education (Scotland) Act, 1878.	Section five. Section six. In part, namely,— From the words “and no child” to “to the first day of April” where those words last occur, and from “A school board may,” to the end. Section seven. In part, namely,— The word “hereinbefore.”
46 & 47 Vict. c. 56. -	Education (Scotland) Act, 1883.	Section four. Section six. Section seven. Section eight.

CHAPTER 10.

An Act to amend the Larceny Act, 1861.

[9th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Fraudulent
misappropriation of
property.

1.—(1.) Whosoever—

- (a) being entrusted, either solely or jointly with any other person, with any property, in order that he may retain in safe custody or apply, pay or deliver, for any purpose or to any person, the property or any part thereof or any proceeds thereof; or
- (b) having, either solely or jointly with any other person, received any property for or on account of any other person,

fraudulently converts to his own use or benefit, or the use or benefit of any other person, the property or any part thereof or any proceeds thereof, shall be guilty of a misdemeanour, and be liable on conviction to penal servitude for a term not exceeding seven years, or to imprisonment, with or without hard labour, for a term not exceeding two years.

(2.) Nothing in this section shall apply to or affect any trustee on any express trust created by a deed or will, or any mortgagee of any property, real or personal, in respect of any act done by the trustee or mortgagee in relation to the property comprised in or affected by any such trust or mortgage.

2.—(1.) Sections seventy-five and seventy-six of the Larceny Act, 1861, are hereby repealed. Repeal, construction, commencement, short title.

(2.) This Act shall have effect as part of the Larceny Act, 1861, and section one of this Act shall be deemed to be substituted for sections seventy-five and seventy-six of that Act, and references in any enactment to those sections shall be construed as references to section one of this Act.

(3.) This Act shall come into operation on the first day of January nineteen hundred and two.

(4.) This Act may be cited as the Larceny Act, 1901, and the Larceny Act, 1861, the Larceny Act, 1868, the Larceny Act, 1896, and this Act may be cited together as the Larceny Acts, 1861 to 1901. 24 & 25 Vict. c. 96.
31 & 32 Vict. c. 116.
59 & 60 Vict. c. 52.

CHAPTER 11.

An Act for enabling local authorities to empower School Boards temporarily to carry on certain schools; and for sanctioning certain School Board expenses.

[9th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1.) Where a school board has at any time during the twelve months immediately preceding the thirty-first day of July one thousand nine hundred and one maintained out of the school fund any school or class to the maintenance of which the school fund is not lawfully applicable, the council of the county or county borough within which the school or class is held, or, with the sanction of the Board of Education, any other local authority under the Technical Instruction Acts, 1889 and 1891, for the district within which the school or class is held, may empower the school board to carry on for the period of one year from that day the work of the school or class to such extent and on such terms as may be agreed on between such council or local authority Temporary provision for certain school board schools.